

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2157

By: Dobrinski

AS INTRODUCED

An Act relating to renewable energy; stating legislative intent; creating the Oklahoma Agrivoltaics Act; creating the Oklahoma Agrivoltaics Advisory Committee; providing for membership of the committee; prohibiting certain compensation; requiring Corporation Commission provide space and staffing for Committee; stating duties of Committee; requiring submission of report by certain date; detailing contents of report; creating the Oklahoma Agrivoltaics Cash Revolving Fund; stating type of fund; providing for expenditures; prohibiting certain expenditures; providing for noncodification; providing for codification; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

A. The Oklahoma Legislature finds that:

1. To maintain strong economic growth and to improve the quality of life of its citizens, the electrical generation capacity within the State of Oklahoma must increase significantly over time;

2. Much of this required generation capacity will, by necessity, be provided by renewable energy projects that have a

1 significant footprint which could potentially impact agriculture
2 production;

3 3. There are strategies for both the siting and construction of
4 these renewable energy projects that could minimize this impact on
5 farming and ranching and in some cases assist in improving overall
6 agriculture productivity; and

7 4. It is in the interest of the public that the State of
8 Oklahoma develop a legislative strategy designed to encourage
9 renewable energy development in a way that works in harmony with
10 farming and ranching.

11 B. It is the intent of the Legislature that policies designed
12 to provide for new renewable energy generation construction also
13 supports the agriculture industry to be developed in the future.

14 SECTION 2. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 850 of Title 17, unless there is
16 created a duplication in numbering, reads as follows:

17 This act shall be known and may be cited as the "Oklahoma
18 Agrivoltaics Act".

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 851 of Title 17, unless there is
21 created a duplication in numbering, reads as follows:

22 A. There is hereby created the Oklahoma Agrivoltaics Advisory
23 Committee. The Committee shall consist of the following seventeen
24 (17) members:

- 1 1. The Secretary of Agriculture or designee;
- 2 2. The Secretary of Energy and Environment or designee;
- 3 3. The Director of the Oklahoma Conservation Commission or
- 4 designee;
- 5 4. The Director of the Oklahoma Department of Wildlife
- 6 Conservation or designee;
- 7 5. One member representing the Division of Agriculture at
- 8 Oklahoma State University, to be appointed by the Governor;
- 9 6. Two members representing Tribal Governments, to be appointed
- 10 by the President Pro-Tempore of the Oklahoma State Senate;
- 11 7. Two members representing the renewable energy industry, to
- 12 be appointed by the President Pro-Tempore of the Oklahoma State
- 13 Senate;
- 14 8. Two members who are producers of field crops, to be
- 15 appointed by the President Pro-Tempore of the Oklahoma State Senate;
- 16 9. Two members associated with the transmission and
- 17 distribution of electrical energy to be appointed by the Speaker of
- 18 the Oklahoma House of Representatives;
- 19 10. Two members who are producers of livestock, at least one of
- 20 whom is actively involved in range management, to be appointed by
- 21 the Speaker of the Oklahoma House of Representatives;
- 22 11. One member representing the Rural Utility Service of the
- 23 United States Department of Agriculture, to be appointed by the
- 24 Speaker of the Oklahoma House of Representatives; and

1 12. One member representing the forestry industry, to be
2 appointed by the Speaker of the Oklahoma House of Representatives.

3 B. Members of the Committee shall serve without compensation
4 but shall be reimbursed for their actual and necessary expenses as
5 provided in the State Travel Reimbursement Act. The Oklahoma
6 Corporation Commission shall provide space for meetings of the
7 Committee and shall provide other assistance and staffing needs of
8 the Committee.

9 C. The Oklahoma Agrivoltaics Advisory Committee shall:

10 1. Advise and assist the Corporation Commission in preparing
11 any reports required by this section and in conducting the
12 assessment pursuant to Section 4 of this act;

13 2. Identify for Oklahoma agricultural and nonagricultural
14 landowners as well as renewable energy and transmission line
15 developers existing tools and government initiatives designed to
16 help in the siting and construction of renewable energy projects and
17 transmission systems in a manner supportive of farming, ranching,
18 and forestry, including agritourism and outdoor recreation leases;

19 3. Develop for consideration by the Oklahoma Legislature, the
20 Governor of the State of Oklahoma, the various Oklahoma state
21 agencies and the Oklahoma Congressional Delegation policy options
22 designed to encourage the development of renewable energy projects
23 and transmission systems in a manner supportive of farming,
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1 ranching, and forestry, including agritourism and outdoor recreation
2 leases;

3 4. Encourage the production of educational and advisory
4 materials regarding the development of agrivoltaics in Oklahoma and
5 to inform both landowners and the renewable energy industry on
6 strategies designed to encourage the development of renewable energy
7 generation in a manner supporting farming, ranching, and forestry,
8 including agritourism and outdoor recreation leases; and

9 5. Identify and recommend areas of research needed on the
10 development of agrivoltaics and the siting and construction of
11 renewable energy projects and transmission systems in a manner
12 designed to minimize their impact on production agriculture and
13 forestry, including agritourism and outdoor recreation leases.

14 SECTION 4. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 852 of Title 17, unless there is
16 created a duplication in numbering, reads as follows:

17 On or before January 1, 2026, the Corporation Commission, in
18 consultation with the Oklahoma Agrivoltaics Advisory Committee,
19 shall prepare a report and submit to the Legislature. The report
20 shall include, but shall not be limited to:

21 1. A list and explanation of existing tools and government
22 initiatives designed to help in the siting and construction of
23 renewable energy projects and transmission systems in a manner
24

1 supportive of farming, ranching, and forestry, including agritourism
2 and outdoor recreation leases;

3 2. A list of policy options designed to encourage the
4 development of renewable energy projects and transmission systems in
5 a manner supportive of farming, ranching, and forestry, including
6 agritourism and outdoor recreation leases, for consideration by the
7 Oklahoma Legislature, the Governor of the State of Oklahoma, the
8 various Oklahoma state agencies and the Oklahoma Congressional
9 Delegation; and

10 3. Recommended areas of research needed on the development of
11 agrivoltaics and the siting and construction of renewable energy
12 projects and transmission systems in a manner designed to minimize
13 their impact on production agriculture and forestry, including
14 agritourism and outdoor recreation leases.

15 SECTION 5. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 853 of Title 17, unless there is
17 created a duplication in numbering, reads as follows:

18 There is hereby created in the State Treasury a revolving fund
19 for the Corporation Commission, to be designated the "Oklahoma
20 Agrivoltaics Cash Revolving Fund". The fund shall be a continuing
21 fund, not subject to fiscal year limitations, and shall consist of
22 all monies designated for deposit to said fund, including any money
23 received as gifts, grants, or other contributions from public or
24 private sources. All monies accruing to the credit of said fund are

1 hereby appropriated and may be budgeted and shall be expended by the
2 Corporation Commission for the purposes of carrying out the
3 provisions of the Oklahoma Agrivoltaics Act. Expenditures from said
4 fund shall be made upon warrants issued by the State Treasurer
5 against claims filed as prescribed by law with the Director of the
6 Office of Management and Enterprise Services for approval and
7 payment. No money shall be transferred or expended by the
8 Corporation Commission for any other purpose than that authorized by
9 this section.

10 SECTION 6. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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